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Case Number: 23NWCV02826 Hearing Date: September 1, 2026 Dept: P

AMARYLLIS

PARTNERS, LLC v. BAKER COUPLING COMPANY, INC., ET AL.

CASE NO.: 23NWCV02826

HEARING: 09/01/2026 @ 9:30 AM

#13

TENTATIVE ORDER

I.

Plaintiff's motion to compel further responses to requests for admissions, set two, from Defendant Baker Coupling Company, Inc. is GRANTED.

II.

Plaintiff's motion to compel further responses to from interrogatories, from Defendant Baker Coupling Company, Inc. is GRANTED IN PART and DENIED IN PART.

III.

Plaintiff's motion to compel further responses to form interrogatories from Defendant Evanston Insurance Company is DENIED.

IV.

Plaintiff's motion to compel further

responses to requests for production, set two from Defendant Western World National Insurance Company is GRANTED IN PART and DENIED IN PART.

V.

Plaintiff's motion to compel further responses to requests for production, set two from Defendant Falls Lake National Insurance Company is GRANTED IN PART and DENIED IN PART.

VI.

See below for detailed rulings.

Moving party to give notice.

Plaintiff Amaryllis Partners, LLC (Plaintiff) moves to compel further responses to (1) requests for admissions (RFAs), set two, from Defendant Baker Coupling Company, Inc. (Baker Coupling); (2) form interrogatories (FROGs), set two, from Baker Coupling; (3) FROGs from Defendant Evanston Insurance Company (Evanston); (4) requests for production (RPDs) from Defendant Western World National Insurance Company (Western World); and (5) RPDs from Defendant Falls Lake National Insurance Company (Falls Lake).

Background

This is a breach of lease action. On September 7, 2023, Plaintiff filed this action against Defendants Baker Coupling and Does 1 to 15. On January 12, 2024, Plaintiff filed a first amended complaint (FAC) adding Gotham, RPS Eagle Facility, and Lexington Insurance Company as Defendants. On April 19, 2024, Plaintiff filed an Amendment to Complaint naming Falls Lake as Doe 1 (collectively, with Gotham, Lexington, and Western World, Insurer Defendants). On February 17, 2026, following the Court's granting of leave to amend in part, Plaintiff filed the operative second amended complaint (SAC).

This action involves the property located at 2929 South Santa Fe Avenue, Vernon, California 90058 (Subject Property). The SAC alleges Plaintiff, the record title holder to the Subject Property and lessor, inherited a commercial lease (Lease) with Baker Coupling, which was set to end on November 30, 2000, though Baker Coupling remained on the Property as lessee on a month-to-month basis. (SAC, ¶¶ 18-19.) On April 5, 2023, Baker Coupling gave 30-day written notice of its intent to terminate the Lease, which stated that it would surrender possession of the Property on May 5, 2023 in accordance

with the Lease terms. (SAC, ¶¶ 20.) The Lease requires Baker Coupling to obtain a Commercial General Liability policy of insurance protecting Lessee and Lessor from damage to the Subject Property. (SAC, ¶¶ 22-25.)

On April 25, 2023, Plaintiff was informed by City of Vernon Police Department that damages to the Subject Property had occurred resulting in the theft of the "entire electrical infrastructure at the [Subject Property]." (SAC, ¶¶ 28-29.) Plaintiff believes the theft occurred on the dates Baker Coupling remained in possession of the Subject Property and had not yet surrendered possession. (SAC, ¶¶ 29-30.) Lease requires Baker Coupling to indemnify, defend, and hold Plaintiff harmless from any loss, cost, expense or liability "arising out of or involving any Hazardous Substance." (SAC, ¶ 35.)

The SAC further alleges that Gotham paid Baker Coupling \$2.5 million under a Commercial General Liability insurance policy Baker Coupling obtained from Gotham. (SAC, ¶¶ 43-45.) Baker Coupling also obtained insurance coverage from RPD Legal and Lexington with a coverage limit of \$6,510,015, for losses in excess of the limit of liability on the Gotham policy. (SAC, ¶ 42.) The SAC alleges that Insurer Defendants have made payments to Baker Coupling. (SAC, ¶¶ 46-47.) Further, "Plaintiff is informed and believes that Baker Coupling has received payments or payment instruments totaling \$3,369,548.14. Baker Coupling has failed and refused to deliver to Plaintiff the funds or payment instruments it has received from [Insurer Defendants]." (SAC, ¶ 47.) The SAC alleges "[u]nder the Lease as reformed or amended by conduct, Baker Coupling owed Plaintiff a duty to identify the mistakes promptly and have the policies corrected to name Plaintiff as a loss payee or additional insured in its capacity as owner of the Premises, but it failed to do so." (SAC, ¶ 48.)

The SAC alleges the following causes of action: (1) reformation (lease) against Baker Coupling and Does 4 through 15, (2) breach of contract (lease) against Baker Coupling and Does 4 through 15, (3) declaratory relief against Insurer Defendants, and (4) breach of contract against Insurer Defendants.

On September 22, 2025, the Court denied Gotham's motion for summary judgment against Plaintiff's FAC. On November 24, 2025, the Court denied Plaintiff's motion for summary judgment or, in the alternative, summary adjudication as to Insurer Defendants. On the same date, the Court denied Lexington and Western World's motion for summary judgment as to Plaintiff's FAC.

Legal Standard

Requests for Admissions

On receipt of a response to requests for admission, the party requesting admissions may move for an order compelling a further response if that party deems that either or both of the following apply: (1) an answer to a particular request is evasive or incomplete or (2) an objection to a particular request is without merit or too general. (Code Civ. Proc., § 2033.290, subd. (a).)

“ ‘Requests for admissions ... are primarily aimed at setting at rest a triable issue so that it will not have to be tried. Thus, such requests, in a most definite manner, are aimed at expediting the trial. For this reason, the fact that the request is for the admission of a controversial matter, or one involving complex facts, or calls for an opinion, is of no moment. If the litigant is able to make the admission, the time for making it is during discovery procedures, and not at the trial.’ ” (Bloxham v. Saldinger (2014) 228 Cal.App.4th 729, 752, citation omitted.)

Interrogatories

Under Code of Civil Procedure section 2030.300, subdivision (a), “[o]n receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply:

(1) An answer to a particular interrogatory is evasive or incomplete.

(2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate.

(3) An objection to an interrogatory is without merit or too general.”

“As a litigant, it is entitled to demand answers to its

interrogatories, as a matter of right, and without a prior showing, unless the party on whom those interrogatories are served objects and shows cause why the questions are not within the purview of the code section.” (Williams v. Superior Court (2017) 3 Cal.5th 531, 541.) “While the party propounding interrogatories may have the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory.” (Ibid.)

Requests for Production

Under Code of Civil Procedure section 2031.260, subdivision (a), a party must respond to requests for production of documents within 30 days of service. Failure to do so waives all objections including privilege or on the protection of work product. (See Code Civ. Proc., § 2031.300, subd. (a).) Parties may move for a further response to requests for production of documents where a statement of compliance with the demand is incomplete, a representation of inability to comply is inadequate, incomplete, or evasive, or where an objection is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a).)

Plaintiff's Motion to Compel Further RFAs from Baker Coupling

Meet and Confer

The parties adequately met and conferred. (Williams Decl., ¶¶ 5-8.)

Discussion

Plaintiff moves to compel Baker Coupling to provide further, verified responses to RFAs, set two, nos. 16-17, 19-25, and 28-40. Plaintiff argues that Baker Coupling's responses are evasive, incomplete, fail to meet the substance of the RFAs, and are not compliant under Code of Civil Procedure section 2033.220, subdivision (c).

RFAs, Set 2, Nos. 16-17, 21-25

In part, the RFAs are as follows:

REQUEST FOR ADMISSION NO. 16:

During each year between 1987 and 2021, inclusive, YOU purchased property insurance that insured against loss or damage to the PREMISES and named the landlord of the PREMISES as a loss payee.

REQUEST FOR ADMISSION NO. 21:

By no later than December 31, 2021, YOU were contractually obligated to purchase and pay the premiums for property insurance that insured against loss or damage to the PREMISES and named the landlord as a loss payee or additional insured.

REQUEST FOR ADMISSION NO. 22:

By no later than December 31, 2021, YOU were aware that Plaintiff was the owner of the PREMISES.

REQUEST FOR ADMISSION NO. 23:

During 2022, YOU purchased property insurance that insured against loss or damage to the PREMISES.

REQUEST FOR ADMISSION NO. 25:

The property insurance that you purchased and paid for in 2021 that insured against loss or damage to the PREMISES expired no later than May 31, 2022.

To each RFA, Baker Coupling objected in part on the basis that the RFA calls for a legal conclusion and provided supplemental responses. For example, in response to No. 16, Baker Coupling stated:

FURTHER RESPONSE TO REQUEST FOR ADMISSION NO. 16:

Without waiving this objection

[based on legal conclusion, speculation, vagueness, compound], and subject thereto: Admit to the extent Defendant purchased property insurance for the PREMISES. However, Defendant lacks sufficient information to admit or deny as to the landlord of the PREMISES being a loss payee.

(Separate Statement.)

Responses to RFAs must (1) “[a]dmit so much of the matter involved in the request as is true, either as expressed in the request itself or as reasonably and clearly qualified by the responding party”; (2) “[d]eny so much of the matter involved in the request as is untrue”; and/or (3) “[s]pecify so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge.” (Code Civ. Proc., § 2033.220, subd. (b).) Further, “[i]f a responding party gives lack of information or knowledge as a reason for a failure to admit all or part of a request for admission, that party shall state in the answer that a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter.” (Code Civ. Proc., § 2033.220, subd. (c).)

Here, while the RFAs properly admit in part and specify the matter in which Baker Coupling lacked knowledge, the RFAs lack statements that Baker Coupling made a reasonable inquiry as required in Code of Civil Procedure section 2033.220, subdivision (c). Therefore, these responses are not fully Code-compliant.

To the extent Baker Coupling argues that there is no dispute regarding these RFAs, Baker Coupling did not object as to relevance. Additionally, Baker Coupling's objections based on legal conclusions are overruled as improper. (*Grace v. Mansourian* (2015) 240 Cal.App.4th 523, 529, citation omitted.)

Therefore, an order compelling further responses to RFAs, Set Two, Nos. 16-17 and 21-25 is warranted.

RFAs, Set
Two, Nos. 19-20

RFA, No. 19 is as follows and No. 20 asks the same except as to premiums.

REQUEST FOR ADMISSION NO. 19:

By no later than December 31, 2021,

YOU were contractually obligated to purchase property insurance that insured against loss or damage to the PREMISES.

(Separate Statement.) Baker Coupling's response is as follows:

FURTHER RESPONSE TO REQUEST FOR
ADMISSION NO. 19:

Without waiving this objection, and
subject thereto: Admit that Defendant paid the premiums for one or more policies purporting to be insurance that, inter alia, purported to insure against loss or damage in respect of the PREMISES from 1987 until 2023. Defendant is not aware of the significance of December 31, 2021.

(Separate Statement.) Plaintiff argues that these responses are non-responsive since Baker Coupling evades answering whether the purchase was contractually obligated. The Court agrees.

Therefore, the Court finds a further response warranted as to Nos. 19 and 20.

RFAs, Set
2, Nos. 28-36

Plaintiff contends that these RFAs seek admissions that Baker Coupling received certain checks from Insurer Defendants. Plaintiff argues that Baker Coupling's responses improperly narrow the requests.

RFA, No. 28 is as follows. Nos. 29-32 request the same as to different insurers and different amounts.

REQUEST FOR ADMISSION NO. 28:

YOU have received a check from
Gotham Insurance Company for \$2,500,000.00 as payment of insurance proceeds.

(Separate Statement.) Baker Coupling's response is as follows:

FURTHER RESPONSE TO REQUEST FOR
ADMISSION NO. 28:

Without waiving this objection, and
subject thereto: Admit to the extent that Defendant's attorney received a check
in the amount of \$2,500,000.00 from Gotham Insurance Company.

(Separate Statement.) Nos. 29-32 state the same as to the
respective insurers and amounts. The Court finds that these responses are not
Code-compliant because they omit whether the checks were for insurance
proceeds. While the Court finds Baker Coupling's argument that this knowledge
goes to the intent of the insurers well-taken, this is insufficient as to the
statutory requirements. " '[S]ince requests for admissions are not limited to
matters within personal knowledge of the responding party, that party has
a duty to make a reasonable investigation of the facts before answering items
which do not fall within his personal knowledge.'" (Bloxham, supra,
228 Cal.App.4th at p. 751-52, citations omitted.) Moreover, Baker Coupling
failed to give lack of knowledge as a basis for omitting this part in its
responses. (Code Civ. Proc., § 2033.220, subd. (b)(3).)

Similarly, Nos. 33-36 fail to comply with Code of Civil
Procedure section 2033.220, subdivision (c). In part, the requests are as
follows:

REQUEST FOR ADMISSION NO. 33:

None of the checks that YOU have
received as payment of insurance proceeds for damage to the PREMISES named
Plaintiff as a payee.

REQUEST FOR ADMISSION NO. 34:

YOU have not endorsed to Plaintiff
any of the checks that YOU have received as payment of insurance proceeds for
damage to the PREMISES.

(Separate Statement.) Baker Coupling generally responds as follows:

FURTHER RESPONSE TO REQUEST FOR
ADMISSION NO. 34:

Without waiving this objection, and
subject thereto: Admit that none of the referenced checks that have been
received has been endorsed to Plaintiff; Defendant lacks sufficient information
to admit or deny whether any of the referenced checks were deemed by the
respective payors thereof as payment of insurance proceeds for damage to the
PREMISES.

(Separate Statement.) The responses address that Baker
Coupling lack's information regarding whether the payments were "insurance
proceeds" but fall short of addressing whether Baker Coupling reasonably
investigated the issue.

Therefore, the Court finds further responses warranted to
Nos. 28-36.

RFAs, Set
2, Nos. 37-40

Plaintiff argues that Baker Coupling fails to admit whether
the listed documents are genuine.

RFA, Set 2, No. 37 is as follows:

REQUEST FOR ADMISSION NO. 37:

The document attached as Exhibit 1
to these Requests for Admission is a true and correct copy of a document that
YOU wrote and sent to the landlord of the PREMISES.

(Separate Statement.) Nos. 38 through 40 similarly ask
whether certain attached exhibits are true and correct.

To No. 37, Baker Coupling responded:

FURTHER RESPONSE TO REQUEST FOR
ADMISSION NO. 37:

Without waiving this objection

[legal conclusion, speculation, vague, compound], and subject thereto: Admit to the extent Defendant signed the document.

(Separate Statement.) As to Nos. 38-40, Baker Coupling similarly does not address the genuineness of the documents but adds that the RFAs are harassing.

Here, Plaintiff is permitted to request admissions regarding the genuineness of documents. (Code Civ. Proc., § 2033.010.) While Baker Coupling argues that it does not remember who wrote the document as it is 40 years old, the response does not indicate that it lacks such knowledge after reasonable investigation. (Code Civ. Proc., § 2033.220, subd. (c).) To the extent that Baker Coupling argues that Nos. 38-40 are harassing because these documents have been addressed in depositions and were produced by Insurer Defendants, this does not excuse Baker Coupling's requirements.

Therefore, an order compelling further responses to Nos. 37-40 is warranted.

Accordingly, Plaintiff's motion to compel further responses to RFAs, set two, nos. 16-17, 19-25, and 28-40 is GRANTED.

Baker Coupling is ORDERED to provide further responses, without objections, within 20 days of this Order. This date may be extended pursuant to agreement between the parties.

Sanctions

Plaintiff moves for monetary sanctions against Baker Coupling and its counsel of record for unsuccessfully opposing this motion and for a misuse of the discovery process.

Pursuant to Code of Civil Procedure section 2033.290, subdivision (d), "[t]he court shall impose a monetary sanction...against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response, unless it finds that the one subject to the sanction

acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

The Court finds monetary sanctions warranted for unsuccessfully opposing this motion. Plaintiff requests \$5,978 reflecting Plaintiff's counsel's hourly rate of \$610 and 9.8 hours to prepare the motion papers. (Williams Decl., ¶ 10.) The Court finds the hours spent unreasonably excessive and unsupported given the similarities in the substance and arguments arising out of the RFAs at issue. The Court reduces the requested hours by 5.8.

Accordingly, Plaintiff's request for monetary sanctions is GRANTED in the reduced amount of \$2,440. Baker Coupling and its counsel of record are ordered to pay this amount within 30 days of this Order. This date may be extended pursuant to agreement between the parties.

Motion to Compel Further Responses to FROGs from Baker Coupling

Meet and Confer

The parties adequately met and conferred. (Williams Decl., ¶¶ 5-8.)

Discussion

Plaintiff moves to compel Baker Coupling to provide further responses to FROG, Nos. 1.1, 17.1, and 50.1-50.6. Plaintiff moves on the grounds that Baker Coupling fails to provide complete and straightforward responses.

FROG, No.
1.1

FROG, No. 1.1 requests “the name, ADDRESS, telephone number, and relationship to you of each PERSON who prepared or assisted in the preparation of the responses to these interrogatories.” (Separate Statement.)

Baker Coupling responded “Defendant and its counsel of record, all care of Clark Hill LLP” with the address and phone number of the firm. (Separate Statement.)

Plaintiff argues that Baker Coupling's response is deficient for failing to provide names. Baker Coupling argues that Defendant can be contacted through the counsel of record and verifications were signed by the individual responsible for verifying responses.

Here, the Court agrees that Baker Coupling's response is technically deficient as it does not provide names of persons. "Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits." (Code Civ. Proc., 2030.220, subd. (a).) Therefore, a further response is warranted.

FROG, No.

17.1

FROG, No. 17.1 asks "[i]s your response to each request for admission served with these interrogatories an unqualified admission?" If not, the FROGs requests which RFA, the supporting facts, the names and contacts of witnesses, and supporting documents. (Separate Statement.)

Plaintiff argues that because Baker Coupling did not unqualifiedly admit RFAs, Nos. 23-24 and 33-36, it was required to provide complete responses to FROGs, No. 17.1(b)-(d). Plaintiff also argues that Baker Coupling's responses to No.17.1(d) only provides categories of persons such as "all parties," "PMKs who have been deposed," "other individuals employed by insurance company defendants." (Separate Statement.) Plaintiff argues that as to No.17.1(d), Baker Coupling improperly cites "[a]ll documents produced in discovery to date, including documents from the insurance company Defendants and third parties." (Separate Statement.)

Baker Coupling also objects to No. 17.1 on the basis that it is "vague, ambiguous, overbroad, unduly burdensome, oppressive and compound, and seeks information protected from discovery by the attorney-client privilege and the attorney work product doctrine. It also calls for the premature disclosure of expert opinion." (Separate Statement.) Baker does not support these objections in opposition. "While the party propounding interrogatories may have the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory." (Williams v. Superior Court (2017) 3 Cal.5th 531, 541.)

Upon review of the responses to No. 17.1, the Court agrees that they are incomplete. While Baker Coupling notes that it lacks sufficient supporting information regarding certain RFAs, Baker Coupling fails explain whether it “ma[de] a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations.” (Code Civ. Proc., 2030.220, subd. (c).) Additionally, similar to No. 1.1, Baker Coupling failed to identify witnesses or documents as requested in the FROG.

Therefore, further responses are warranted as to No. 17.1.

FROGs,
Nos. 50.1-50.6

FROGs, Nos. 50.1-50.6 request information regarding each agreement alleged in the pleadings. (Separate Statement.) Specifically, No. 50.1 requests identification of the agreements, No. 50.2 inquires whether there were any breaches alleged, No. 50.3 requests whether performance was excused, No. 50.4 requests information regarding termination, No. 50.5 requests information on enforceability, and No. 50.6 requests information on whether the agreements are ambiguous. Baker Coupling's responses only address the lease. (Separate Statement.) Plaintiff argues that these responses are not complete because more agreements than the lease are addressed in the SAC.

In opposition, Baker Coupling argues that it is not required to opine or interpret the insurance policies and the breaches arising out of the insurance policies as the only cause of action between Plaintiff and Defendant is of breach of the lease.

In reply, Plaintiff contends that Baker Coupling is a party of the insurance policies and that this discovery relates to Plaintiff's allegation that Baker Coupling failed to ensure Plaintiff was named as loss payee. Plaintiff also argues that Baker Coupling did not assert relevance as an objection and cannot rely on it now.

Upon review of the FROGs and responses, the Court finds that there is good cause to compel further responses to No. 50.1 as to the insurance policies but not Nos. 50.2-50.6. As Baker Coupling is a party to the insurance policies, responses to No. 50.1 are relevant and may lead to admissible evidence. However, the Court agrees that Nos. 50.2 through 50.6, inquiring into breaches of the insurance policies, is outside of the scope of the pleadings as

to Baker Coupling. Baker Coupling's argument that these FROGs are "a roundabout way of bringing Defendant into the dispute between Plaintiff and the insurance Defendants" is well-taken. (Separate Statement.)

Moreover, No. 50.2 is incomplete based on the failure to identify dates of the breach of lease.

Therefore, an order compelling further responses to Nos. 50.1 and 50.2 (as to the lease) is warranted. The Court does not find further responses to Nos. 50.2 through 50.6 warranted as to other agreements based on a lack of good cause.

Accordingly, Plaintiff's motion to compel further responses to FROGs from Baker Coupling is GRANTED IN PART and DENIED IN PART. It is granted as to FROGs, Nos. 1.1, 17.1, 50.1, and 50.2 (as to the lease). It is denied as to Nos. 50.2 through 50.6 as to other agreements.

Baker Coupling is ORDERED to serve further, verified responses to FROGs, 1.1, 17.1, 50.1, and 50.2 (as to the lease) within 20 days of this Order. This date may be extended pursuant to agreement between the parties.

Sanctions

"The court shall impose a monetary sanction...against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2030.300, subd. (d).)

Because neither party was fully unsuccessful in this motion, the Court declines to award monetary sanctions.

Motion to Compel Further Responses to FROGs from
Evanston

Meet and Confer

The motion to compel further discovery shall

be accompanied by a meet and confer declaration. (See Code Civ. Proc., § 2030.300, subd. (b)(1).) A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion. (Code Civ. Proc., § 2016.040.)

The meet and confer “rule is designed ‘to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order....’ [Citation]. This, in turn, will lessen the burden on the court and reduce the unnecessary expenditure of resources by litigants through promotion of informal, extrajudicial resolution of discovery disputes.” (Stewart v. Colonial Western Agency, Inc. (2001) 87 Cal.App.4th 1006, 1016, citations omitted.) “ ‘[A] reasonable and good faith attempt at informal resolution entails something more than bickering with [opposing]counsel....Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.’ ” (Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1294.)

Plaintiff’s counsel solely directs the Court to Exhibit 5 to show its attempts to meet and confer with Evanston. (Williams Decl., ¶ 5, Exh. 5.)

In opposition, Evanston provides a timeline to show why the meet and confer process is inadequate. Evanston shows that it served its responses to FROGs, set one via email on March 27, 2026, making the deadline to bring a motion to compel further responses May 13, 2026. (See Code Civ. Proc., § 2030.300, subd. (c) [deadline for propounding party to bring motion is 45 days from service of responses].)

Evanston argues, and Plaintiff’s presentation of the meet and confer emails confirms, that Plaintiff’s counsel sent the first meet and confer email on May 13, 2026—the deadline to bring this motion. (Yoon Decl., ¶ 6; Williams Decl., Exh. 5.) Plaintiff made no attempt to meet and confer from March 27, 2026 to May 12, 2026. (Yoon Decl., ¶ 5.) Evanston’s counsel explains that Plaintiff requested an extension and “[Evanston’s counsel] stated that if Plaintiff believed a supplemental response was required, please provide its basis and Evanston will consider it. Plaintiff responded that it believed Evanston’s response to Form Interrogatory 15.1 was insufficient, and again asked for an extension. Before Evanston could respond (as I had to pick up my kids from school), Plaintiff filed its Motion to Compel.” (Yoon Decl., ¶ 6.)

In reply, Plaintiff does not dispute that the parties did not engage in a proper meet and confer process. Rather, Plaintiff argues that Evanston's response to the FROG was not substantive and Evanston's rejection of the extension request constitutes a refusal to meet and confer.

Here, requesting an extension of the motion deadline on the last day to file a motion after not meeting and conferring in the 45-days preceding the deadline does not constitute a good faith effort at meeting and conferring. Moreover, Evanston is not required to grant an extension, and the Court cannot interpret the refusal to grant an extension as a refusal to meet and confer under these circumstances.

Given the pending trial date, a continuance to permit the parties to informally resolve this issue is not possible. Thus, this motion is denied for failure to meet and confer as required under the Code.

Accordingly, Plaintiff's motion to compel further responses to FROGs from Evanston is DENIED.

Sanctions

Evanston requests monetary sanctions against Plaintiff for unsuccessfully bringing this motion without making an effort to meet and confer.

Pursuant to Code of Civil Procedure section 2030.300, subdivision (d), "[t]he court shall impose a monetary sanction...against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust."

Here, monetary sanctions are warranted against Plaintiff for unsuccessfully bringing this motion under the mandatory provision of Code of Civil Procedure section 2030.300, subdivision (d). Evanston requests \$2,800 reflecting Evanston's counsel's hourly rate of \$400, five hours to oppose this motion, and two hours to attend this hearing. (Yoon Decl., ¶ 7.) The Court finds this unreasonably excessive given the amount of discovery at issue and the simplicity of the procedural argument. The Court reduces 3 hours.

Accordingly, Evanston's request for monetary sanctions against Plaintiff is GRANTED in the reduced amount of \$1,200. Plaintiff is ORDERED to pay this amount within 20 days of this Order. This date may be extended pursuant to agreement between the parties.

Motion to Compel Further Responses to RPDs from
Western World

Meet and Confer

Neither party disputes the sufficiency of the meet and confer process. Plaintiff explains that the parties participated in an IDC on February 4, 2026 in which no orders were made. (Williams Decl., ¶¶ 4-7.) Accordingly, the parties adequately complied with the meet and confer requirement.

Discussion

Plaintiff moves to compel Western World to produce further responses, without objections (except privilege), to RPDs, Set Two, Nos. 35-53. Plaintiff argues that Western World's objections are without merit and that Western World has not produced a single document.

Plaintiff contends that RPDs, Nos. 35 through 53 seek documents and communications related to the insureds, payees, additional insureds, and loss payees for its insurance policy for the Subject Premises. Plaintiff also seeks documents created or reviewed by Western World during the application, submission, evaluation, underwriting, and modification of the policy.

In opposition, Western World argues that Plaintiff has previously sought underwriting discovery through no. 22 of the first set of RPDs on Western World at which time Western World objected based on relevance, confidentiality, proportionality, and related grounds, including that Plaintiff was neither an insured nor additional insured under the policy. (Smith Decl., ¶¶ 3-6.) At that time, Plaintiff did not file a motion to compel further responses. (Smith Decl., ¶ 8.) The prior requests were as follows:

REQUEST FOR PRODUCTION NO. 1:

All DOCUMENTS RELATING to the

POLICY.

REQUEST FOR PRODUCTION NO. 3:

All DOCUMENTS transmitted by or between YOU and BAKER regarding the POLICY, claims under the POLICY, the PREMISES, the LEASE, the ACTION, or the allegations in the FIRST AMENDED COMPLAINT.

REQUEST FOR PRODUCTION NO. 4:

All COMMUNICATIONS between YOU and BAKER regarding the POLICY, claims under the POLICY, the PREMISES, the LEASE, the ACTION, or the allegations in the FIRST under the POLICY, the PREMISES, the LEASE, the ACTION, or the allegations in the FIRST AMENDED COMPLAINT.

REQUEST FOR PRODUCTION NO. 22:

YOUR complete underwriting files RELATING to the POLICY at issue in the FIRST AMENDED COMPLAINT.

(Smith Decl., ¶ Exh. A.)

In part, the current requests are as follows:

REQUEST FOR PRODUCTION NO. 35:

All DOCUMENTS in the underwriting file RELATED TO the insured(s), payee(s), additional insured(s), and loss payee(s) for the POLICY, including without limitation all notes, memoranda, analyses, and electronic data created or reviewed during the underwriting process.

REQUEST FOR PRODUCTION OF DOCUMENTS NO. 37:

All underwriting file COMMUNICATIONS that are RELATED TO the insured(s), payee(s), additional insured(s), and loss payee(s) for the POLICY, including without limitation all correspondence, emails, and messages created or reviewed during the

underwriting process.

REQUEST FOR PRODUCTION NO. 38:

All internal COMMUNICATIONS RELATED

TO the application, insured(s), payee(s), additional insured(s), and loss payee(s) for the POLICY.

REQUEST FOR PRODUCTION OF
DOCUMENTS NO. 40:

All DOCUMENTS YOU received from or

transmitted to GALLAGHER RELATED TO the application, insured(s), payee(s), additional insured(s), and loss payee(s) for the POLICY.

REQUEST FOR PRODUCTION NO. 42:

All DOCUMENTS YOU received from RPS

RELATED TO the application, insured(s), payee(s), additional insured(s), and loss payee(s) for the POLICY.

REQUEST FOR PRODUCTION NO. 47:

All DOCUMENTS RELATED TO YOUR

policies and procedures for naming or refusing to name additional insureds or loss payees in property insurance policies, including with respect to policies like or similar to the POLICY.

REQUEST FOR PRODUCTION NO. 52:

All personal, desk, or handwritten

notes of underwriters, supervisors, or other personnel involved in evaluation or approving the POLICY or its application, insured(s), payee(s), additional insured(s), and loss payee(s).

REQUEST FOR PRODUCTION NO. 53:

All DOCUMENTS that reflect or

RELATE TO audits, reviews, or evaluations of the underwriting performed on the POLICY before, during, and after subscribing to or issuing it.

(Separate Statement.) Western World generally objects to each RPD on the basis that they are overbroad, unduly burdensome, harassing, not relevant, not in Western World's custody or control, seeks trade information, protected under the attorney-client privilege, and "duplicative of Request No. 22 to which Western World responded on February 25, 2025, and to which the motion to compel deadline has long passed." (Separate Statement.)

Western World also explains that Plaintiff already obtained the underwriting file and testimony from the underwriter on April 3, 2025, after serving a deposition subpoena on Risk Placement Services, Inc. (RPS). (Smith Decl., ¶¶ 18-23.)

Here, the Court agrees that to the extent that the RPDs at issue request documents that were already requested in RPDs, set one, Nos. 1, 3, 4, and 22, the RPDs are improper. However, the Court also agrees with Plaintiff's reply argument that the second set of RPDs does not necessarily ask for the same production. Set one requested documents related to communications with Baker Coupling and then the complete underwriting files. Western World is not required to produce these. Therefore, the Court does not find an order compelling further responses to Nos. 35, 36, 39, 45, 46, and 48-53 warranted.

Western World further objects to this production on the grounds that this is not an underwriting dispute and the requested discovery is not relevant to Western World's performance under the policy.

In reply, Plaintiff argues that this discovery relates to whether Plaintiff is a third-party beneficiary. This requires a showing of intent at the time the contract was agreed to. (*Goonewardene v. ADP, LLC* (2019) 6 Cal.5th 817, 830.) Plaintiff contends that the requested production may show Baker Coupling's intent and Western World's understanding.

The Court finds that Plaintiff establishes good cause to compel further responses to Nos. 37, 38, 40-44, and 47 based on relevance.

To the extent that Western World argues that the correct entity for production is RPS and that it either does not possess responsive documents or that production is cumulative, this is not compliant. "[A party] is entitled to discover any non-privileged information, cumulative or not, that may reasonably assist it in evaluating its defense, preparing for

trial, or facilitating a settlement.” (TBG Ins. Services Corp. v. Superior Court (2002) 96 Cal.App.4th 443, 448-49, citation omitted.) Moreover, even if the documents are not in Western World’s custody, Western World is required to respond with a representation of an inability to comply as well as affirming whether it made a reasonable search and inquiry. (See Code Civ. Proc., § 2031.230.)

Accordingly, Plaintiff’s motion to compel further responses to RPDs, set two is GRANTED IN PART and DENIED IN PART. Plaintiff’s motion is granted as to Nos. 37, 38, 40-44, and 47 and denied as to Nos. 35, 36, 39, 45, 46, and 48-53.

Western World is ORDERED to provide further verified responses to RPDs, set two, Nos. 37, 38, 40-44, and 47 within 20 days of this Order. This date may be extended pursuant to agreement between the parties.

Sanctions

Because neither party was fully unsuccessful in this motion, the Court declines to award monetary sanctions.

Motion to Compel Further Responses to RPDs from Falls Lake

Meet and Confer

Plaintiff contends that counsel for Falls Lake refused to meet and confer despite opposing an IDC on the grounds that Plaintiff failed to meet and confer. Plaintiff also shows that it sent meet and confer letters to Falls Lake. (Williams Decl., ¶ 6.) Falls Lake notes that it exchanged correspondence with Plaintiff regarding the RPDs at issue. (Yoon Decl., ¶ 12.) As such, the parties have adequately met and conferred.

Discussion

Plaintiff moves to compel Falls Lake to produce further responses to RPDs, Set Two, Nos. 33-51 on the grounds that Falls Lake’s objections are meritless and Falls Lake has not produced any responsive documents.

The Court notes that except for two RPDs, the RPDs and arguments are substantively the same as Plaintiff's motion as to Western World. Specifically, Falls Lake raises the same arguments that Plaintiff never compelled further responses to RPDs, set one, and that RPS has produced responsive documents. (Yoon Decl., ¶¶ 3-6.)

Based on the arguments, the Court rules the same as in the motion against Western World. The Court finds an order compelling further responses warranted as to Nos. 37, 38, 40-44, and 47 and not warranted as to Nos. 35, 36, 39, 45, 46, and 48-51.

Plaintiff additionally seeks to compel further responses to Nos. 33 and 34. The requests are as follows:

REQUEST FOR PRODUCTION NO. 33:

All DOCUMENTS in the underwriting file RELATED TO the insured(s), payee(s), additional insured(s), and loss payee(s) for the POLICY, including without limitation all notes, memoranda, analyses, and electronic data created or reviewed during the underwriting process.

REQUEST FOR PRODUCTION NO. 34:

All DOCUMENTS created, reviewed, considered, or maintained by YOU during the application, submission, underwriting, evaluation, rating, pricing, issuance, renewal, or modification of the POLICY with respect to the insured(s), payee(s), additional insured(s), and loss payee(s).

(Separate Statement.)

As these RPDs request documents that have already been requested without Plaintiff moving to compel further responses, the Court does not compel further responses now.

Accordingly, Plaintiff's motion to compel further responses to RPDs, set two is GRANTED IN PART and DENIED IN PART. Plaintiff's motion is granted as to Nos. 37, 38, 40-44, and 47 and denied as to Nos. 33-36, 39, 45, 46, and 48-51.

Falls Lake is ORDERED to provide further verified responses to RPDs, set two, Nos. 37, 38, 40-44, and 47 within 20 days of this Order. This date may be extended pursuant to agreement between the parties.

Sanctions

Because neither party was fully unsuccessful in this motion, the Court declines to award monetary sanctions.